

Amendment No. 1 to HB1259

Todd
Signature of Sponsor

AMEND Senate Bill No. 639*

House Bill No. 1259

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 7-35-401(b), is amended by adding the following as a new subdivision:

() "Galvanized requiring replacement" means a galvanized service line that is or was at any time downstream of a lead service line, or is currently or was previously connected to a lead service line, and is required to be replaced pursuant to applicable federal drinking water regulations, including the federal Lead and Copper Rule, 40 C.F.R. Part 141, Subpart I, as amended.

SECTION 2. Tennessee Code Annotated, Section 7-35-401(c)(1)(B)(iii), is amended by deleting the subdivision in its entirety and substituting instead the following:

(iii) "Project for a private purpose" does not include the renewal or replacement or assessment of:

(a) Private water lines behind a utility-owned meter when such rehabilitative maintenance or construction is deemed necessary by a municipality, utility district, metropolitan government, or other public entity to address lead service lines or galvanized requiring replacement lines located on private property, but only for the portion of the service line extending from the utility-owned meter to the exterior building envelope of the structure served for the purpose of addressing serious health issues; or

(b) Sewage lines on private property when such rehabilitative maintenance or construction is deemed necessary by a municipality, utility

district, metropolitan government, or other public entity because excessive infiltration and inflow from groundwater or rainwater is resulting in sanitary sewer overflows or other serious health or system capacity issues.

SECTION 3. Tennessee Code Annotated, Section 7-35-401(c), is amended by adding the following as a new subdivision:

(3) A municipality, utility district, metropolitan government, or other public entity may, but is not required to, maintain or construct individual lines for the purposes described in subdivisions (c)(1)(B)(iii)(a) and (b) if the property owner consents and agrees to hold the municipality, utility district, metropolitan government, or other public entity harmless for the work.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.